

24SMCV02107 24SMCV02107

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-06

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This is part of the motion for reconsideration. Plaintiff sued defendant but would not respond to discovery requests. Even

after the court issued orders compelling responses, plaintiff ignored the orders. That led the court to grant defendant's motion for terminating sanctions.

The court stayed its ruling, though, because it was based on the notion that plaintiff had abandoned the case, which is why plaintiff had not provided discovery or even opposed the motion for terminating sanctions. Shortly thereafter, plaintiff moved for reconsideration. Her counsel said it was counsel's fault due to a medical condition.

At the prior hearing, the court agreed that by falling on the proverbial sword, counsel had established that a terminating sanction was too harsh. The court invited the defense, though, to suggest more limited sanctions that would mitigate any prejudice caused by the delay. The defense filed a supplemental opposition. In it, the defense suggests issue and evidentiary sanctions that are the functional equivalent of terminating sanctions. For example, the

defense seeks issue sanctions deeming the following issues to be resolved: defendant did not breach the standard of care, defendant was not negligent, anything defendant did caused no harm, defendant's conduct led to no special damages, defendant's conduct did not cause pain and suffering, defendant did not cause emotional distress, defendant did not contribute to bodily injury, and it goes on. There is no effort made

to link the sanction to the prejudice the defense suffered. The court can only conclude that defendant has not been prejudiced other than the fact that the trial is upon us. Oddly, plaintiff did not respond to defendant's filing. The court will

inquire whether in fact plaintiff has abandoned the case.

Therefore, the court will award no evidentiary sanctions nor issue sanctions. The court will award monetary sanctions for the original motion and the opposition to the motion for reconsideration, but not for the supplemental brief, in an amount to be determined by further motion.

There is obvious prejudice to the defense given the upcoming trial. Therefore, the FSC and trial dates are VACATED. The court will hold a TSC on August 24, 2026, at 8:30 am. The court makes no promises as to when the matter will be restored to the trial calendar. Right now, the end of the trial line is April 2028. The discovery cut off for the moving defendant will be tied to the new trial date. In all other respects, fact discovery is tied to the original trial date, but expert discovery will be tied to the new trial date. If plaintiff can establish good cause to re-open discovery generally, this order is without prejudice to a motion to obtain such an order. To the extent plaintiff is or might be entitled to prejudgment interest, such interest will not accrue between now and the time of trial.